

## Sudarshan Yadav v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 25 March 2021 · Writ-C No. 6694 of 2021 · **Writ disposed; objections reconsidered under Clause 8.1(b); recovery stayed.**

### HEADNOTE

Where written objections to a provisional assessment had not been decided, the Allahabad High Court disposed of the writ by directing the assessing officer to fix a personal hearing, consider every objection afresh by a reasoned speaking order strictly under Clause 8.1(b) of the U.P. Electricity Supply Code, 2005, and withhold coercive recovery on the 7 July 2020 demand until that fresh decision or two months, whichever is earlier.

### FACTUAL SUMMARY

Sudarshan Yadav challenged a 7 July 2020 demand following a 12 December 2019 inspection alleging theft. He said his father Rampyarey Yadav held a valid domestic connection, the theft allegations were false, and his 21 January 2020 objections to the 29 December 2019 provisional assessment were never decided: no personal hearing was fixed before the final assessment. Licensee's counsel submitted that, once the provisional notice was served, personal hearing was unnecessary unless demanded.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::8.1(b)

consideration of objections to provisional assessment

#### HOLDING

Objections to a provisional assessment, including those going to the inspection report, must be considered afresh strictly in accordance with Clause 8.1(b). The assessing officer was directed to fix a personal hearing on the consumer's 21 January 2020 objections, deal with every point in a reasoned speaking order on the 29 December 2019 provisional assessment, and take no coercive steps on the 7 July 2020 demand until that fresh decision or two months. If the consumer fails to appear on the date fixed, the licensee may proceed in accordance with law. ¶ 5-7

### PRINCIPLE TAGS

**no-recovery-without-final-assessment-clause-8.1(b)** Coercive recovery on the 7 July 2020 demand was stayed until a fresh Clause 8.1(b) decision (or two months), so the existing demand could not be enforced while objections to the provisional assessment remained to be decided. ¶ 6

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER THE 12 DECEMBER 2019 INSPECTION ESTABLISHED THEFT, AND WHETHER THE 7 JULY 2020 DEMAND WAS VALID ON MERITS

The Court remanded for fresh consideration under Clause 8.1(b) without deciding the theft allegations or the quantum of the demand. ¶ 5-6

#### NOT DECIDED — WHETHER CLAUSE 8.1(B) REQUIRES A PERSONAL HEARING UNLESS THE CONSUMER DEMANDS ONE

The licensee argued that personal hearing is not required unless demanded. The Court said “Be that as it may” and directed a hearing as a further opportunity, without deciding that contention. ¶ 4-5